

sacrificed, except so far as the father and son might choose to give them effect.

3. To obviate these results settlements were usually penned in one of the two following modes: either, [*381] *First*, The legal estate was *limited to the use of the parent for 99 years if he should so long live, with remainder to the use of trustees and their heirs during the life of the parent upon trust to preserve the contingent limitations, and on his death to other uses in remainder; or to the use of trustees and their heirs during the life of the parent in trust for him, and on his death to other uses in remainder; or, *Secondly*, The settlement was to the use of the parent for life with remainder to trustees and their heirs during the life of the parent upon trust to preserve the contingent remainders, and on his death to other uses in remainder.

4. **Case of the legal estate for life in the trustee.** — In the *first* form of settlement the object in view, by vesting the freehold in the trustees, was to preserve the contingent limitations from being destroyed by the surrender or merger of the particular estate, which would have been practicable had the freehold been limited to the parent himself, and also to prevent the barring of the entail and the alienation of the estate for purposes not authorised by the spirit of settlement.

5. **Case of the legal estate in the tenant for life.** — In the *second* form it was the duty of the trustees as before to preserve the contingent limitations, but as the freehold in possession was vested in the parent the trustees had no power to prevent a recovery by the father and son as soon as the latter came of age, but if the tenant for life committed a forfeiture (as by feoffment in fee in order to defeat the contingent remainders), it was then the duty of the trustees to enter and so vest the freehold in possession in themselves, and it was then their further duty, as in the first form, though the settlor himself might not have contemplated such a purpose, not to concur in putting an end to the settlement, except where such interference was prudent and proper (a).

(a) The duties of trustees to preserve contingent remainders with reference to the old law have been omitted in this edition, but will be found in the early editions.